CCBE Guidelines on the Use of AI by Lawyers

Artificial Intelligence and the Judiciary

Piraeus Bar Association
17 March 2026, Piraeus (remote)

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Introduction

The focus has shifted: not whether to use AI tools, but how to use them best.

What is most efficient, what is still risky, what are the tricks of the trade?

To stay relevant, we must prepare for the changes and remain in control.

We must convince clients that retaining us still provides added value.

What has changed since 2019?

5th Panhellenic Conference on Media & Communication Law "Artificial Intelligence and Law — Limitations, Challenges, Perspective"

In 2019, I thought smaller languages would shield us from automation. I was wrong.

NLP practically solved the curse of Babel — linguistic diversity is no shield.

If languages can't protect us, lack of access to local legal corpus won't either...

CCBE's 2025
Guide on the Use of Generative AI by Lawyers

Published October 2025 by the Council of Bars and Law Societies of Europe

Key focus: **ensuring effective human oversight** over AI tools in the profession

Background: CCBE Guide in 2022

In March 2022, CCBE published „**Guide on the use of Artificial Intelligence-based tools by lawyers and law firms in the EU**”

Not official guidance to bars — a technical document predating the GenAI changes

The technology accessible to lawyers changed dramatically between 2022 and 2025.

The GenAI Revolution (2022–)

Few expected InstructGPT/ChatGPT to cause seismic changes in the profession.

"Generative AI" became a buzzword — covering both text and image generation.

The market for NLP tools was turned upside down from 2022 onwards.

CCBE Adopts the GenAI Guide

IT Law Committee worked on the guidance from January 2024.

Finalised August 2025, adopted by CCBE in October 2025.

Covers benefits, risks, and impact on core professional principles.

Examines effects on CCBE's Code of Conduct and Charter of Core Principles.

Core Principles — Competence

Effective human oversight requires competence in using AI tools.

We must understand what activities our tool use entails in the background.

We have to look under the hood, even if we'd rather be humanists than engineers.

I HAVE PEOPLE SKILLS! (Office Space, 1999)

Evaluating Our Tool Use

Keep the desired outcome in mind; spot convincing but incorrect answers.

Know when to involve special legal databases or other tools.

Know when to refrain from using a particular kind of tool.

Loyalty and Confidentiality

Understand what clients actually want and protect their interests.

Keep information confidential even when providers act as a black box.

Be transparent about tools used and the major risks involved.

If clients object to certain tools, be prepared to accommodate that.

Independence

Remain independent — not just of clients, but also of AI model providers.

Be able to evaluate output and replace a specific provider if necessary.

Independence leads back to competence and our ability for human oversight.

Core Principles in Action

Let's look at specific examples of how to ensure all this...

1. Confidentiality: GenAI via Web UIs
2. When to Use Local AI Models?
3. Improper Use and Lack of Oversight
4. Transparency

1. Confidentiality: GenAI via Web UIs

Same problem as **cloud computing**: trusting external providers with client data.

AI requires massive power — data centres thousands of km away.

Solo and small firms forced to use consumer products (with limited transparency)

What the AI Provider Knows

Providers possess your full interaction history: questions, answers, documents.

They hold the text you asked the system to draft and the documents you uploaded...

(We must be able to exclude uses that clients would disapprove of)

Training Data Risks

Your interactions may train newer models available to everyone.

This could result in accidental disclosure of sensitive information.

"Product improvement" or weak anonymisation may further expose client data.

Even prompt summaries without PII may remain protected client data.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

IN RE:	:	
OPENAI, INC., COPYRIGHT INFRINGEMENT LITIGATION,	:	25-md-3143 (SHS) (OTW)
This Document Relates To: **All Actions**	:	**ORDER**

ONA T. WANG, United States Magistrate Judge:

The Court has reviewed the parties' submissions in advance of the March 10, 2026 discovery status conference and sets the following agenda to discuss remaining discovery.

I. Rulings[1]

a. Additional Reservoirs (ECF 1312)

Plaintiffs' Motion to Compel production of the reservoirs of 78 million and 10 million logs is **GRANTED in part**. OpenAI is ordered to produce the reservoirs of 78 million and 10 million logs and to meet and confer with Plaintiffs on an appropriate protocol, in light of the Court's rulings on the de-identification of the 20 million log sample, to de-identify such logs and protect any users' privacy.

b. Monaco 30(b)(6) Deposition (ECF 1220)

I find that OpenAI designee Vinnie Monaco was not sufficiently or properly prepared for his 30(b)(6) deposition, and that the pattern of objections and Mr. Monaco's resulting answers impeded, delayed and frustrated the fair examination of OpenAI, the deponent. The parties are

OpenAI being forced to submit 20 million (automatically deidentified) chat logs in discovery

Legal and Security Risks

AI providers can be compelled by court to hand over your data.

Law enforcement may issue orders with gagging clauses, preventing notification.

Providers can suffer data breaches or be acquired by adverse parties.

Criminal and family law data may breach providers' acceptable use policies.

Pseudonymisation as a Workflow

For many use cases, firms must pseudonymise materials before uploading.

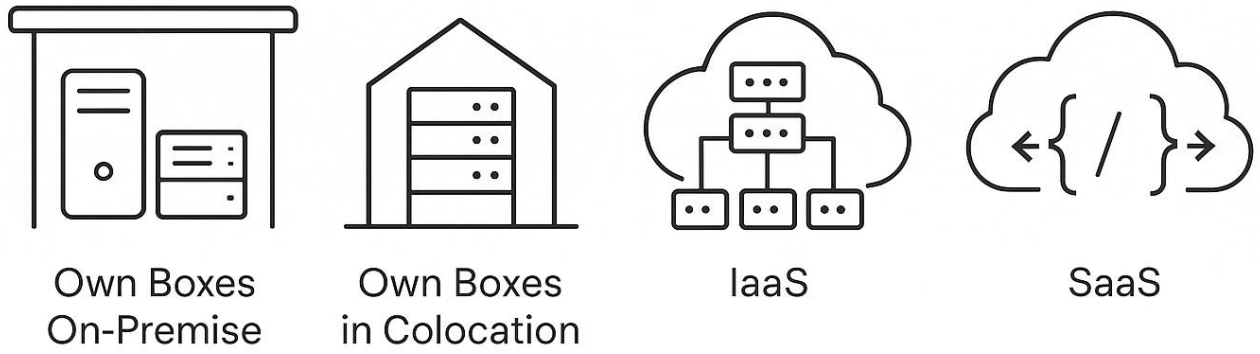
The process must be reversible after remote AI processing.

2. Confidentiality, cont.: When to Use Local AI Models?

When pseudonymisation is not enough, you need more control over AI systems.

Options range from IaaS cloud to self-hosted servers to local hardware.

Even powerful (non-frontier) models can now run at home, for a price.



four modes of AI model use

Why Local Models Matter

- More control requires more technical expertise — CCBE is drafting guidance on this.
- Local models give first-hand experience of how AI actually works.
- Like personal computers in the 1980s, hands-on experience drives adoption.
- Crucial for the independence of the profession, the judiciary, and sovereignty.

3. Improper Use and Lack of Oversight

- Programming and math problems are relatively easy — results can be verified.
- But passing a law qualification exam is not a useful benchmark for AI reliability.
- Our task is to serve clients via reliable tools whose output we can trust.

Building Reliable Legal AI Tools

Being a lawyer is not a well-documented profession, even with published case law.

We must build scaffolding to turn generic chatbots into reliable legal tools.

This requires agentic skills combined with reliable legal databases.

AI companies cannot do this for us — our profession is too heterogeneous.

Chat Cowork Code

Let's knock something off your list

Cowork is in research preview. Learn how to use it safely or give us feedback.

How can I help you today?

C:\Users\peter\OneDrive\Dokumentumok\ROL

Opus 4.6

Customize

Skills

Connectors

Give Claude role-level expertise with Plugins

Browse plugins

Customize and manage the context and tools you are giving Claude.

Connect your tools
Integrate with the tools you use to complete your tasks

Create new skills
Teach Claude your processes, team norms, and expertise

Browse plugins
Tailor Claude to a specific subject

Principled Tool Use (1/2)

a) Don't ask questions nobody can verify. Statistical sampling beats nothing.

b) Break complex tasks into smaller, verifiable units with checkpoints.

c) Separate search and reasoning — verify sources before accepting inferences.

Principled Tool Use (2/2)

d) Save and reuse prompts in a library; build workflows from prompt templates.

e) Hallucination risk depends on model, system, input size, and training data.

f) Prefer reliable software tools (calculator, Excel, databases) over GenAI where available – have it to create a tool for you (VBA, Python)

4. Transparency

Don't charge "time equivalent" fees — charge the actual time spent.

Hiding reliance on AI tools is harder than people think.

People are increasingly sensitive to AI-generated output and its stylistic giveaways.

AI content detectors are not yet reliable, especially for non-native English speakers.

The Long-Term Trend

Clients increasingly expect us to use AI tools — anticipate that

Prepare for increasing volume, higher expectations, and quicker turnaround

This is a long-term trend we cannot stop

Thank you